

**Court No. - 39**

**Case :-** WRIT - C No. - 67443 of 2015

**Petitioner :-** Ashu Rathi

**Respondent :-** State Of U.P. & 4 Others

**Counsel for Petitioner :-** Bharat Pratap Singh

**Counsel for Respondent :-** C.S.C., Baleshwar Chaturvedi,  
Shrawan Kumar Tripathi

**Hon'ble Dilip Gupta, J.**

**Hon'ble Mukhtar Ahmad, J.**

The petitioner disputes the amount raised by the respondent-Electricity Urban Distribution Division-I in the communication dated 7 July 2015 and it is for this reason that the petitioner submits that the citation should not have been issued for the recovery of the amount.

This petition has been filed to assail the recovery proceedings that have been initiated and there is no challenge to the main demand of charges raised by the respondents.

In any case, as the petitioner has a remedy available under Clause 6.5 of the U.P. Electricity Supply Code, 2005, we do not consider it appropriate to entertain this petition.

The writ petition is, accordingly, dismissed.

**Order Date :-** 18.12.2015

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(Dilip Gupta, J.)

(Mukhtar Ahmad, J.)